

statutory damages. Without a statutory cause of action, such damages are unavailable.

Conclusion

Based on the above, Defendants' motion to strike is **granted**.

3. 9:00 AM CASE NUMBER: C22-02577

CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS

***HEARING ON MOTION IN RE: DEMURRER TO 2ND AMENDED COMPLAINT.**

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Bryant Harris' Demurrer to Second Amended Complaint.

Factual Allegations and Procedural Background

In June 2020, Plaintiffs entered into a contract with Defendant Nelson Pools, Inc. for construction of a swimming pool, hot tub, and concrete decking at Plaintiffs' residential property. Plaintiffs allege numerous problems with the design and performance of the work by Defendants.

Relevant to the current proceeding, Defendant Bryant Harris is alleged to have "owned, managed, and/or acted in a supervisory capacity" for Defendant Nelson Pools. (¶ 9.) He is also alleged to have had several discussions with Plaintiffs during and after the construction project, and to have designed at least part of the project. (e.g. ¶¶ 14-15, 18-19.)

Plaintiffs filed their initial complaint on December 2, 2022. The operative Second Amended Complaint was filed on May 19, 2025. The SAC alleges four causes of action: (1) breach of contract; (2) negligence; (3) strict liability – design defect; and (4) fraud. Only the second (negligence) and fourth (fraud) causes of action are asserted against moving Defendant Harris.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A

demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Timeliness of Opposition

Plaintiffs acknowledge that their opposition papers were filed beyond the statutory deadline. They note that this was due to exigent circumstances beyond their control related to the health of one of the Plaintiffs. The Court has discretion to accept late filed papers. (Cal. R. Ct. 3.1300 (d).) While the opposition papers were late, Defendant Harris filed a substantive Reply in a timely manner. As such, the Court will accept the late filed opposition papers. Plaintiffs are reminded to strictly abide by any applicable deadlines going forward.

Negligence

“The essential elements of a cause of action for negligence are: (1) the defendant’s legal duty of care towards the plaintiff; (2) the defendant’s breach of duty – the negligent act or omission; (3) injury to the plaintiff as a result of the breach – proximate or legal cause; and (4) damage to the plaintiff.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103.)

Defendant Harris contends via his demurrer that the SAC fails to properly allege he had a legal duty of care toward Plaintiffs. He argues that plaintiffs’ negligence cause of action is predicated solely on a duty created by the contract. The SAC, however, goes beyond just the contract. As the demurrer notes, the “SAC expressly alleges that the contractor owed a duty to plaintiffs,” citing pages 9, lines 15-21. The SAC states, in relevant part, at that location:

As contractors, Defendants owed Plaintiffs a duty of care which encompassed the project being completed and left in a finished state that was reasonable and safe for use, both pursuant to the terms of the contract **and as proscribed by common law.** (emphasis added.)

The SAC goes on to allege that the “Defendants who designed, managed, and performed the construction at Plaintiff’s residence owed Plaintiffs, as their customers/clients, the duty to provide a finished product that was safe for use by Plaintiffs and their family and guests.” (¶ 38.) It is also alleged that Defendant Harris “designed the defective step/hot tub.” (¶ 18.)

When reading a complaint in response to a demurrer, the Court must “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Blank*, supra, 39 Cal.3d 311 at 318.) In addition, the allegations in the complaint must be construed “liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.)

Defendant also appears to argue that the negligence cause of action is barred by the economic loss rule, contending that “a person does not have a duty to guard against ‘purely economic loss.’” (Demurrer at 3:13-15 citing *Southern California Gas Leak Cases* (2019) 7 Cal.5th 391, 398.) No real analysis of this legal theory is provided. As noted by Plaintiffs, the SAC specifically alleges physical injury. (See e.g. ¶ 15, 17 g, 25, 35, 37.)

Based on the above, Defendant’s demurrer to the negligence cause of action is **overruled**.

Fraud

“The elements of fraud are: ‘(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, *i.e.*, to induce reliance, (d) justifiable reliance, and (e) resulting damage.’” (*Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 184.)

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) “This particularity requirement necessitates pleading *facts* which ‘show how, when, where, to whom, and by what means the representations were tendered.’” (*Ibid.* quoting *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73 italics in original.) “A plaintiff’s burden in asserting a fraud claim against a corporate employer is even greater. In such case, the plaintiff must ‘allege the names of the person who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.’” (*Ibid.* quoting *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.)

Initially, the Court notes that there are several allegations wherein “Defendants” are alleged to have made certain statements and/or representations. (See e.g. ¶¶ 23, 55-57.) The SAC names four separate individual defendants: (1) Ryan W. Nelson; (2) Nicole Nelson; (3) Sean Adams; and (4) Bryant Harris. (¶¶ 3-6.) Accordingly, it is impossible to tell what individual is alleged to have made any of these statements. Without specific attribution to Defendant Bryant Harris, they cannot support a fraud claim against him. Defendants Ryan Nelson, Nicole Nelson, and Sean Adams have been dismissed from the case.

As stated by Mr. Harris, there appear to be only two allegations regarding specific statements made by him: (1) that Harris stated that the handrails would be installed by Defendant Adams, (¶ 14) and that (2) Harris indicated that “someone would come to finish” the items pointed out by Plaintiffs (¶ 19.).

Regarding the first statement, there are no allegations that Mr. Harris knew this statement to be false when he made it. To support a fraud claim, there must be facts showing that the person speaking knew the statement to be false at the time the statement was made. (*Charnay*, *supra*, 145 Cal.App.4th at 184.) As to the second statement, the SAC goes on to state that when Plaintiffs attempted to discuss the outstanding items “Defendant Harris became angry and stated: ‘we’re not doing any more work at your house’ and stormed off.” (¶ 19.) This undercuts any claim that Plaintiffs ‘justifiably relied’ upon the representation that the outstanding items would be fixed. Instead, it shows that there was a large doubt as to whether Defendants would complete the project.

In addition, the law is well established that actionable misrepresentations must pertain to past or existing material facts. (*Gentry v. eBay, Inc.* (2002) 99 Cal.App.4th 816, 835 [121 Cal.Rptr.2d 703].) Statements or predictions regarding future events are deemed to be mere opinions which are not actionable. (*Neu-Visions Sports, Inc. v. Soren/McAdam/Bartells* (2000) 86 Cal.App.4th 303, 309–310; *Nibbi Brothers, Inc. v. Home Federal Sav. & Loan Assn.* (1988) 205 Cal.App.3d 1415, 1423; 5 Witkin, Summary of Cal. Law (10th ed. 2005) Torts, § 774, pp. 1123–1125.)” (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1469-70.) Both above statements pertain to possible future events and not past existing material facts.

Based on the above, Defendant Harris' demurrer to the fraud cause of action is **sustained**.

Leave to Amend

The burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading." (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

Defendant requests that the demurrer be sustained without leave to amend. Plaintiffs not only do not provide any explanation as to how they can amend the SAC to properly allege the fraud cause of action, they do not even request leave to amend. Despite this, "it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted.)

The SAC does not show on its face that it is incapable of amendment. As this is the first challenge to pleading, leave to amend is granted. Plaintiffs are reminded of their burden going forward.

Conclusion

Defendant's Demurrer is **overruled** as to negligence cause of action and **sustained** as to the fraud cause of action. Plaintiffs are **granted leave to amend** as to the fraud cause of action. Plaintiffs shall file their amended complaint within 14 calendar days of entry of this Order.

4. 9:00 AM CASE NUMBER: C23-00932
CASE NAME: HONESTII LUMSEY VS. ANTIOCH EDEN RIVERTOWN, L.P.
***HEARING ON MINOR'S COMPROMISE RE: HONESTII AMARA LUMSEY**
FILED BY: LUMSEY, HONESTII AMARA

TENTATIVE RULING:

Hearing required.

The Court is concerned that the fee percentage of 40% is not consistent with the criteria for a reasonable attorney's fee under CRC 7.955(b). Counsel are given the option of either accepting a reduction of the fee to \$30,000 (30% of the recovery) or continuing the matter and submitting a supplemental brief addressing compliance with the CRC factors. (The Court is aware that the proposed 40% is a reduction from 50% called for by the retainer agreement.) Counsel may appear to address the issue.

The attorney is required to appear (by zoom is acceptable). Appearance of the minor is waived for good cause. Appearance of the Guardian ad Litem is required (by zoom is acceptable), in order to assure that she understands that (1) if subsequent events show that the injuries have not fully healed, she cannot reopen the case; and (2) that the funds are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when she turns 18, unless the court orders otherwise.